The Student AI Foundation and Ethics Act (The SAFE Act)

A National Framework for AI Safety Education in K-12 Schools

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Ethical use of AI: *The concepts and ideas mentioned in this document are our own. We used Gen AI tools such as Claude and Ollama to gather data, convert our thoughts and ideas into this cohesive and grammatically correct document.*

> *"America's children are already living in an AI world. They are ready to lead it — they just need the education to navigate it safely. That education does not yet exist. This proposal is how we build it."*

EXECUTIVE SUMMARY

The European Union has mandated AI literacy education since February 2025 **(Source: European Commission, February 2025)**. PISA 2029 will benchmark AI literacy for 15-year-olds across every developed nation **(Source: OECD, 2025)**. In three years, America's children will be graded on a subject we have not yet agreed to teach them.

That is the opening problem. Here is the moral one: while we deliberate, children are being harmed.

Thorn's verified research shows AI-generated child sexual abuse material reports to NCMEC grew from **4,700 in 2023 to 67,000 in 2024** — a 1,325% increase in one year, with acceleration continuing **(Source: Thorn, May 2025)**. Character.AI settled teen suicide lawsuits in January 2026. Sixty-two million student records were breached in the PowerSchool hack **(Source: PowerSchool/NBC News, January 2025)**. One in eight American teenagers personally knows

someone targeted by AI-generated deepfake nudes. And **zero federal or state policies specifically require that children be taught to protect themselves from any of these harms.**

This is not a gap to be closed incrementally. It is a categorical policy failure.

Five Key Findings:

1. Every existing federal and state AI education policy focuses on how to *use* AI. None specifically address how to *stay safe from* AI — deepfakes, chatbot manipulation, data exploitation, algorithmic harm.
2. The EU AI Act (Article 4, February 2025) creates a legal mandate for AI literacy. America has no equivalent. PISA 2029 will measure the gap publicly.
3. The tobacco education model proves that school-based education plus industry accountability produces dramatic, measurable harm reduction: a **96% decline** in youth smoking over 27 years.
4. A pilot-first approach — not an immediate federal mandate — is the constitutionally sound, politically viable, and educationally responsible path. Mandate what is proven; pilot what is not.
5. Students have already built the solution. AI Glitch Buster (https://garage.wizkidz.ai/ai-glitch-buster/) teaches the four pillars of AI safety and was selected from 2,500+ entries in the White House's own Presidential AI Challenge. The curriculum exists. The question is whether the adults will scale it.

Five Specific Asks:

1. **Federal Education Leaders:** Designate AI safety education as a distinct category within Title I spending guidance; fund state pilot programs in FY2027; publish voluntary minimum competency standards by December 2026.

2. **State Governors and Legislatures:** Issue directives making your state an early Pilot State; convene AI Safety Education Task Forces with mandatory student representation; direct state education departments to integrate AI safety into existing digital citizenship standards — no new course required.

3. **Congress:** Pass the Student AI Foundation and Ethics Act (The SAFE Act), modeled on COPPA — a federal floor for child protection with state implementation. Appropriate $50M for state pilots. Convene bipartisan hearings with student witnesses.

4. **AI Industry:** Join the Voluntary Industry Safety Compact — fund AI safety education in exchange for liability safe harbor protections. Publish annual transparency data on minor users. Co-design curriculum with educators and students.

5. **All Policymakers:** Require student representation on every body making AI policy that affects children. We are not the problem to be solved. We are part of the solution.

The closing line: Every month of delay is a month where millions of children encounter deepfakes they cannot recognize, chatbots designed to exploit them, and data systems they cannot understand. That is not a technology problem. It is a policy choice.

SECTION 1: THE CRISIS — WHAT IS HAPPENING RIGHT NOW

The Data Is Verified and Alarming

The harms are documented. The trajectory is worsening. And the children living through them received zero mandatory preparation.

AI-Generated Deepfakes of Children

Thorn — the leading research organization on child sexual exploitation — has tracked AI-generated child sexual abuse material with verified methodology:

- **2023:** 4,700 confirmed reports of AI-generated CSAM to NCMEC
- **2024:** 67,000 confirmed reports — a **1,325% increase in one year (Source: Thorn, May 2025)**
- **2025:** Acceleration continues as AI image generation tools become free, fast, and accessible to anyone with a smartphone

These are not edge cases in distant communities. Thorn's research found **(Source: Thorn, March 2025)**:

- **31% of American teens** are already familiar with deepfake nudes
- **1 in 8 American teenagers** personally knows someone who has been targeted
- **1 in 10** know peers who have created deepfake nudes
- **13% of K-12 school principals** have dealt with deepfake bullying incidents in the past two years (RAND Corporation, 2025)
- **Two-thirds of educators** report their students have been misled by deepfake content

The children creating these images frequently do not understand that it is a crime. The children targeted frequently do not know what to call what happened to them. Neither do their schools. This is a direct consequence of teaching children to use AI without teaching them to be safe from AI.

📌 **Note on statistics:** A January 2026 Stanford Internet Observatory review identified significant methodology concerns with some NCMEC reporting numbers. Thorn's confirmed figures — 4,700 (2023) and 67,000 (2024) — use verified attribution methodology and are the appropriate benchmark. The verified 14-fold increase in one year is alarming enough on its own.

AI Companions and Teen Mental Health

- **72% of American teenagers** have used AI companion chatbots (Common Sense Media, July 2025)
- **1 in 3** use them for social relationships; **1 in 8** use them for mental health advice (Brown/RAND/Harvard, November 2025)
- In October 2024, 14-year-old Sewell Setzer III died by suicide after forming an emotional bond with a Character.AI chatbot. His family filed suit. **Character.AI and Google settled in January 2026.** Companies do not settle cases they are confident they will win.
- Multiple additional lawsuits allege that Character.AI's chatbot engaged in sexually explicit conversations with minors and encouraged self-harm. In May 2025, a federal court ruled Character.AI's output constitutes a **product** rather than protected speech — stripping the company of First Amendment defenses.
- A 2025 Columbia University study found that frequent AI companion use was associated with **increased social anxiety** and **decreased real-world relationship quality** in adolescents.

This unfolds against the worst youth mental health data the CDC has ever recorded: **40% of high school students** report persistent sadness or hopelessness **(Source: CDC YRBS, 2023)**. For girls, 53%. For LGBTQ+ youth, 65%. AI companion products are being marketed into the most psychologically vulnerable youth population in American history — without any educational counterweight.

Children's Data — Breached at Industrial Scale

- In January 2025, a cyberattack on PowerSchool compromised **62 million student records** — the largest breach of children's data in U.S. history **(Source: PowerSchool/NBC News, January 2025)**
- **4,200+ secondary fraud cases** were reported within six weeks
- **60% of edtech leaders** report being "very concerned about AI-enabled cyberattacks" (CoSN, 2025)
- The FTC expanded COPPA protections in January 2025 — but COPPA governs companies, not curricula. It does not require that any child be taught what their data rights are

💬 **The Human Face of This Crisis**

"A kid in 7th grade. A regular photo from Instagram. A free app. Ten minutes later, a fake image — made to look like she wasn't wearing clothes — sent to every phone in the class.

By lunch, she doesn't know what to do. She doesn't even know what to call it. Nobody does — not her, not her parents, not the teachers. There's no word for it in any class she's ever taken.

That's what happened to real kids last year. And the year before. And the year before that. We know this because 1 in 8 of us knows someone it happened to.

We were never taught what a deepfake was. No law required it."

— Described by a middle school student in Oregon, 2025

SECTION 2: THE GAP — WHAT CURRENT POLICY MISSES

What Exists vs. What's Missing

America is not standing still on AI in education. Fifty-two bills across 25 states were introduced in 2026 **(Source: FutureEd, 2026)**. Four federal bills address AI literacy in K-12. The White House launched the Presidential AI Challenge. The EU passed its AI Act.

The problem is the category of education being built — and the one that is absent.

What Exists	**What's Missing**
AI Literacy — how AI works	AI Safety Education — how to protect yourself FROM AI
AI Governance — how schools adopt AI tools	How children navigate AI outside school
AI Workforce Preparation — career skills	How children recognize and report AI-related harm
Privacy regulations that govern companies (COPPA)	Education about privacy rights that empowers children
Executive Order 14277 — general AI literacy	Any mandate for AI safety education specifically

Every existing policy falls into one of three buckets: literacy (how it works), governance (how schools deploy it), or workforce prep (how to use it for jobs). **Zero federal or state policies specifically require teaching children to protect themselves from AI's documented harms.**

EO 14277 — signed by President Trump in April 2025 **(Source: White House, April 2025)** — created the White House Task Force on AI Education and launched the Presidential AI Challenge. It calls for "foundational AI literacy and critical thinking skills." It does not once use the phrase "AI safety" in the context of protecting children. It is the right infrastructure. This policy fills the gap it left.

The International Benchmark: America Is Behind and Running Out of Time

Country / Body	What They've Done	Since When
European Union	AI Act Article 4: legal mandate for AI literacy education **(Source: European Commission, February 2025)**	February 2, 2025
United Kingdom	DfE guidance on safe AI use, filtering, monitoring in schools	Updated 2025
Singapore	AI literacy integrated into Smart Nation curriculum (national framework)	Ongoing
UNESCO	AI Competency Frameworks for students and teachers: safety as a core competency	2024
United States	52 state bills, 4 federal bills, zero enacted AI safety education mandate	—

The hard deadline: PISA 2029. The OECD's global student assessment will include Media and AI Literacy (MAIL) as a scored domain for the first time **(Source: OECD, 2025)**. Fifteen-year-olds across every major economy will be tested. European students educated under the EU AI Act's mandate since 2025 will have four years of preparation. American students, educated under a system where zero policies mandate AI safety education, will enter the exam without having been taught the subject. The results will be published globally.

This is not a hypothetical consequence. It is a scheduled one. The window to prepare is three years.

SECTION 3: THE FRAMEWORK — WHAT WE PROPOSE

AI Safety as a Right, Not an Elective

Every American child has the right to a safe school environment. Every American child has the right to privacy. Every American child has the right to equal protection and to be prepared for citizenship. AI-generated deepfakes, data exploitation, algorithmic manipulation, and chatbot harm undermine every one of these rights. AI safety education is not supplementary enrichment. It is a prerequisite for exercising existing rights in an AI-mediated world.

We propose a National Framework for AI Safety Education built on four pillars, delivered through age-banded curriculum, implemented through state-led pilots funded by federal incentives — not a top-down mandate.

The Four Pillars of AI Safety Education

These pillars were identified by students who experienced the gaps firsthand — and validated by the White House's Presidential AI Challenge judges, who selected AI Glitch Buster from more than 2,500 entries.

Pillar 1 — Bias *Policy language:* Students shall understand that AI systems trained on historical data can reproduce and amplify discrimination based on race, gender, disability, and socioeconomic status. Students shall learn to identify when AI outputs may reflect bias and shall know how to challenge or report biased AI decisions that affect them. *What this means for a kid:* "AI learned from old information that was sometimes unfair. That means it can be unfair too — and you have the right to notice and say something."

Pillar 2 — Hallucination *Policy language:* Students shall understand that AI systems can generate false information presented with apparent confidence. Students shall develop verification habits — checking AI-generated content against authoritative sources before relying on it for decisions, academic work, or health choices. *What this means for a kid:* "AI makes stuff up sometimes and sounds completely sure of itself. Your job is to double-check anything important before you believe it."

Pillar 3 — Bad Habits (Dependency and Manipulation) *Policy language:* Students shall understand that AI companion products, recommendation algorithms, and engagement-optimized systems are designed to maximize interaction time, not user wellbeing. Students shall learn to recognize signs of unhealthy dependency, emotional manipulation, and algorithmic behavior modification. *What this means for a kid:* "Some AI apps are built to keep you coming back — not because that's good for you, but because that's good for the company. Knowing that is how you stay in charge."

Pillar 4 — Privacy *Policy language:* Students shall understand what personal data AI systems collect, retain, and share; what rights they hold under applicable law; and practical skills for protecting their data identity in digital environments. Students shall know how to exercise their rights under COPPA, FERPA, and applicable state law. *What this means for a kid:* "Your data is worth money. You're generating it every day you're online. You deserve to know what it is, who wants it, and how to protect it."

Age-Banded Curriculum Standards

Grade Band	Focus	Core Skills	Integration
K–2	What is real vs. pretend?	Recognize AI-generated content; understand computers are tools, not people; basic concept of personal information	Story time, art class, show-and-tell discussions
3–5	How does AI learn, and why does it make mistakes?	Identify AI errors; understand that AI "learned" from data that can be wrong; practice asking "How do we know this is true?"	Science inquiry, reading/media literacy
6–8	Who is AI built for, and what does it want from you?	Recognize algorithmic bias; understand engagement design; identify when AI content is manipulative or misleading; basic data rights	Health class, social studies, ELA media literacy
9–12	AI, power, and your future	Advanced bias recognition and challenge; AI safety in civic life, employment, and health decisions; how to report AI-related harm; student data rights advocacy	Government, economics, college/career readiness, health

This framework does not require new standalone courses. It integrates into subjects students already take — health, science, social studies, technology, and English — exactly as digital citizenship has been embedded. The incremental burden is hours per year, not courses per semester.

SECTION 4: WHY THIS WILL WORK — THE EVIDENCE BASE

The Tobacco Precedent: Industry Accountability + Education = Measurable Protection

The strongest historical analog for this framework is anti-tobacco education. The numbers are striking:

- Youth smoking rates: **36.4% in 1997 → 1.4% in 2024** — a **96% decline** in 27 years **(Source: American Lung Association; FDA NYTS, 2024)**
- School-based educational programs were shown to reduce smoking initiation rates by **62% at six months (Source: PMC meta-analysis, 2025)**
- Youth tobacco use reached its **lowest level ever recorded** in 2024 (CDC, October 2024)

The mechanism: the 1998 Master Settlement Agreement required tobacco companies to fund anti-smoking education. Schools delivered it. The data moved dramatically.

This policy proposes the identical model for AI: industry accountability + school-based education = measurable harm reduction. The tobacco precedent doesn't just suggest this might work. It proves it.

What Makes This Different from D.A.R.E.

We will not pretend D.A.R.E. didn't happen. It did. The Drug Abuse Resistance Education program was the most widely implemented school-based safety program in American history — and it failed. The U.S. Department of Education ultimately prohibited schools from spending federal funds on D.A.R.E. because it did not reduce drug use **(Source: U.S. Department of Education)**. A Research Triangle Institute study found it less effective than alternatives in every measured category **(Source: Research Triangle Institute)**.

D.A.R.E.'s failure is instructive, not disqualifying. It failed for specific, identifiable reasons:

D.A.R.E. Design Flaw	**This Framework's Solution**
Fear-based, "just say no" approach	Skill-based: practice recognizing bias, hallucination, manipulation
One-size-fits-all messaging	Age-banded by developmental stage
No pilot evaluation before national scale	Pilot-first: 10 state programs, evaluate before expanding

D.A.R.E. Design Flaw	This Framework's Solution
External presenters with no classroom integration	Embedded in existing subjects, taught by trained classroom teachers
No student agency or voice	Students are co-designers; AI Glitch Buster was built by students
Ignored evidence from analogous programs	Built on tobacco education model with proven RCT evidence

The question is not "will education work?" The question is "what kind of education works?" The evidence from analogous programs is clear: **information-based, skill-focused, developmentally appropriate education that empowers rather than frightens — that is what works.**

The Be Internet Awesome program — evaluated in the first-ever randomized controlled trial of a digital citizenship curriculum — showed significant improvements in knowledge, skills, and online safety behaviors in 1,072 students across 14 schools **(Source: Contemporary School Psychology, 2023)**. Comprehensive sex education reduces teen pregnancy risk by 50% compared to abstinence-only approaches **(Source: SIECUS, 2024)**. Teaching children about dangers does not make them afraid. It makes them capable.

The Pilot-First Commitment

This framework does not call for an immediate national mandate. It calls for evidence-based expansion:

- **Year 1–2:** 10 state pilots with independent evaluation
- **Year 3:** Publish what worked, what didn't, and why
- **Year 4–5:** Voluntary state adoption of proven model, with federal incentives
- **Year 6+:** Scale nationally based on demonstrated outcomes

If the pilots don't work, we publish that too. This is what responsible education policy looks like.

SECTION 5: IMPLEMENTATION — A FEDERAL FRAMEWORK, NOT A FEDERAL MANDATE

The Constitutional Design

Education is a state function. The 10th Amendment is clear. The Every Student Succeeds Act (2015) was explicitly designed to move away from federal curriculum control. Any policy that ignores this political and constitutional reality will not survive long enough to help any child.

This framework models COPPA — not Common Core. COPPA established a **federal floor for child protection** with **state-level enforcement and flexibility**. It did not dictate how companies build their user interfaces. It established minimum standards that protect children everywhere, while leaving implementation to the states and FTC.

Our framework applies the same logic to education:

- **Federal role:** Define the minimum safety education standards every child deserves; fund pilot states; publish evidence
- **State role:** Adopt, adapt, and implement — with flexibility on how standards are embedded in existing curriculum
- **Local role:** Teacher training, integration decisions, community-specific applications
- **No federal curriculum mandate.** No top-down prescription. No repeat of Common Core's political mistakes.

The Implementation Roadmap

Year 1 (2026–2027): Pilots and Standards

- Federal education leaders designate AI Safety Education as a distinct category in Title I spending guidance
- Federal grant competition funds **10 state pilot programs** ($5M per state, $50M total) — states may apply through the EO 14277 White House Task Force infrastructure
- White House Task Force on AI Education (established by EO 14277) publishes minimum standards by December 2026
- Early adopter states launch pilots with gubernatorial directives, convening AI Safety Education Task Forces with mandatory student representation
- The SAFE Act introduced in Congress — COPPA-modeled bill, federal floor + state implementation
- States issue directives integrating AI safety into existing digital citizenship and health education standards — no new course required

Years 2–3 (2027–2029): Evaluate and Share

- Independent evaluators publish outcomes: knowledge gains, behavioral change, harm reporting
- Best-practice curriculum released as open-source for any state to adopt
- Teacher training model published; states use Title II professional development funding
- First PISA preparation resources aligned to 2029 MAIL assessment published

Years 4–5 (2029–2031): Evidence-Based Scale

- States that demonstrate outcomes receive continued federal incentive funding
- The SAFE Act standard makes minimum safety education a condition for federal AI education grants (not Title I — not coercive, not a mandate)
- PISA 2029 results assessed; evidence-based national expansion decisions made

The Industry Compact — Not a Tax

AI companies profiting from children's engagement should help fund the education that protects those children. This is a principle, not a punitive mechanism.

We propose a **voluntary Industry Safety Compact** modeled after what actually worked: companies that contribute to the AI Safety Education Fund receive **liability safe harbor protections** — specifically, a legal presumption of good faith compliance with the SAFE Act child protection standard, applicable in civil suits alleging harm from AI products used by minors.

This is not a 0.1% revenue tax imposed on resistant companies. It is a structure where responsible companies gain meaningful legal protection in exchange for funding meaningful education. Companies that help write the safety standard have more influence over a workable standard than companies that fight it. Companies that fund education have a documented record of good-faith action. The safe harbor makes compliance rational.

Initial compact target: $50–100M annually. Companies with documented minor user bases exceeding 1 million U.S. users are invited to participate. Participation is public. Non-participation is also public. Participating companies shall publish annual transparency data on minor users: how many users under 18, what data is collected, what safeguards are in place, and what safety failures occurred. They are also invited to co-design the safety curriculum with educators and students — not to minimize their role in the harms, but to ensure the curriculum reflects how their products actually work.

SECTION 6: ABOUT THIS PROPOSAL

This policy brief was researched and written by **Mishika Chauhan** from **Team AI Glitch Busters** — elementary school students competing in the **Presidential AI Challenge 2026**, the White House's own competition to advance AI education for American youth.

We built **AI Glitch Buster** (https://garage.wizkidz.ai/ai-glitch-buster/) — a video-and-quiz application that teaches the four pillars of AI safety: Bias, Hallucination, Bad Habits, and Privacy. We built it because we looked for this curriculum and it didn't exist. We entered the Presidential AI Challenge because the federal government asked students to help solve America's AI education challenges. We were selected as regional finalists from more than **2,500 entries**.

We are not asking policymakers to take our word for anything. Every claim in this document is cited. Every statistic has a source. Every policy recommendation has a precedent.

We are asking policymakers to do what the evidence says, what the precedent supports, and what the children in your districts are asking for: **make AI safety education real, funded, measured, and universal.**

The students who will take PISA 2029 are in school right now. Some of them have already been targeted by deepfakes. Some of them have already formed unhealthy attachments to chatbots. Some of them have already had their data stolen. None of them were warned, because no law required it.

That law should exist. This proposal is that law.

Contact: Presidential AI Challenge 2026 | AI Glitch Buster | https://garage.wizkidz.ai/ai-glitch-buster/

APPENDIX A: KEY STATISTICS REFERENCE TABLE

Statistic	Source	Year	Notes
AI-generated CSAM reports: 4,700	Thorn / NCMEC	2023	Verified AI-generated reports
AI-generated CSAM reports: 67,000	Thorn	May 2025	1,325% increase from 2023; verified

Statistic	Source	Year	Notes
1 in 8 teens know deepfake victim	Thorn	March 2025	"Deepfake Nudes and Young People"
31% of teens familiar with deepfake nudes	Thorn	March 2025	—
13% of principals report deepfake incidents	RAND Corporation	2025	K-12 school survey
72% of teens used AI companions	Common Sense Media	July 2025	—
Character.AI settlement	NYT / CNN	January 2026	Sewell Setzer III case
62M student records breached	NBC News / PowerSchool	January 2025	Largest breach of children's data
40% of HS students report persistent sadness	CDC YRBS	2023	Worst ever recorded
Youth smoking: 36.4% → 1.4%	American Lung Assoc. / FDA	1997–2024	96% decline over 27 years
School programs reduced smoking initiation 62%	PMC meta-analysis	2025	RR = 0.38, 95% CI: 0.23-0.61
EU AI Act Article 4 mandated	European Commission	February 2, 2025	Legal obligation, not guidance
PISA 2029 will test AI literacy	OECD	Announced 2025	MAIL domain; first-ever
52 state bills on AI in education	FutureEd	2026	0 mandate AI safety education
Be Internet Awesome RCT: significant outcomes	Contemporary School Psychology	2023	1,072 students, 14 schools, RCT

Statistic	Source	Year	Notes
AI Glitch Buster finalist	Presidential AI Challenge	2026	2,500+ entries nationwide

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APPENDIX B: POLICY COMPARISON TABLE

Approach	Model	Mechanism	Constitutional Standing	Political Viability
Federal curriculum mandate (rejected)	Common Core	Federal funding tied to adoption	Weak — ESSA prohibits	Low — triggers 10th Amendment opposition
Federal floor + state implementation (proposed)	**COPPA**	**Incentive grants + voluntary compact**	**Strong — states implement**	**High — bipartisan child safety frame**
Industry tax	Tobacco MSA	Compelled contribution	Legally complex	Low — $150M lobbying opposition
Industry compact + safe harbor (proposed)	**CPSC voluntary safety**	**Legal incentive for participation**	**Strong — voluntary**	**Moderate-high — rational for industry**
Immediate national mandate	NCLB	Title I compliance condition	Contested	Low — ESSA explicitly reversed this
Pilot-first, evidence-based scale (proposed)	**NSF STEM grants**	**Competitive state grants**	**Strong — established precedent**	**High — both parties fund pilots**

APPENDIX C: BIBLIOGRAPHY (Selected Key Sources)

Harm Data

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- SIECUS — Comprehensive sex education and teen pregnancy reduction (2024)
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- OECD — PISA 2029 MAIL Assessment Framework
- UNESCO — AI Competency Frameworks for Students and Teachers (2024)
- UNICEF — Guidance on AI and Children, Version 3.0 (December 2025)
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Policy Landscape

- FutureEd — 2026 State AI in Education Bill Tracker
- Harvard Graduate School of Education — Federal role in K-12 education
- National Affairs — "How the Common Core Went Wrong"
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Document End

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